

and there are exigent circumstances was clearly established—erred by refusing to consider the argument that it was *not* clearly established that the circumstances with which petitioner was confronted did not constitute probable cause and exigent circumstances. The relevant question here is the objective question whether a reasonable officer could have believed petitioner's warrantless search to be lawful, in light of clearly established law and the information the searching officers possessed. Petitioner's subjective beliefs about the search are irrelevant. Pp. 638–641.

2. There is no merit to respondents' argument that it is inappropriate to give officials alleged to have violated the Fourth Amendment—and thus necessarily to have *unreasonably* searched or seized—the protection of a qualified immunity intended only to protect *reasonable* official action. Such argument is foreclosed by the fact that this Court has previously extended qualified immunity to officials who were alleged to have violated the Fourth Amendment. Also without merit is respondents' suggestion that *Mitchell v. Forsyth*, 472 U. S. 511, be overruled by holding that qualified immunity may never be extended to officials who conduct unlawful warrantless searches. Nor is there any merit to respondents' contention that no immunity should be provided to police officers who conduct unlawful warrantless searches of innocent third parties' homes in search of fugitives. Pp. 642–646.

766 F. 2d 1269, vacated and remanded.

SCALIA, J., delivered the opinion of the Court, in which REHNQUIST, C. J., and WHITE, BLACKMUN, POWELL, and O'CONNOR, JJ., joined. STEVENS, J., filed a dissenting opinion, in which BRENNAN and MARSHALL, JJ., joined, p. 647.

*Andrew J. Pincus* argued the cause for petitioner. With him on the briefs were *Solicitor General Fried*, *Assistant Attorney General Willard*, *Deputy Solicitor General Ayer*, *Barbara L. Herwig*, and *Richard A. Olderman*.

*John P. Sheehy* argued the cause *pro hac vice* for respondents. With him on the brief was *Ronald I. Meshbesher*.\*

JUSTICE SCALIA delivered the opinion of the Court.

The question presented is whether a federal law enforcement officer who participates in a search that violates the Fourth Amendment may be held personally liable for money

---

\**David Rudovsky*, *Jack D. Novik*, and *Michael Avery* filed a brief for the American Civil Liberties Union as *amicus curiae* urging affirmance.